

Whangarei District Council Meeting Minutes

Date: Thursday, 25 July, 2024

Time: 9:00 a.m.

Location: Civic Centre, Te Iwitahi, 9 Rust Avenue

In Attendance

His Worship the Mayor Vince Cocurullo

Cr Nicholas Connop

Cr Ken Couper

Cr Jayne Golightly

Cr Phil Halse

Cr Patrick Holmes

Cr Scott McKenzie

Cr Marie Olsen

Cr Carol Peters (Teams)

Cr Simon Reid

Cr Phoenix Ruka

Cr Paul Yovich

Not in Attendance

Cr Gavin Benney

Cr Deborah Harding

Scribe

C Brindle (Senior Democracy Adviser)

Administrative matters

- Meeting livestreamed
- Supplementary report:
 - 6.6 Transition Advisory Board Terms of Reference

1. Karakia/Prayer

His Worship the Mayor opened the meeting with a karakia/prayer.

2. Declarations of Interest / Take Whaipānga

There were no declarations of interest made.

3. Apologies / Kore Tae Mai

Crs Gavin Benney and Deborah Harding

Moved By Cr Scott McKenzie

Seconded By Cr Patrick Holmes

That the apologies be sustained.

Carried

4. Public Forum / Huihuinga-a-tangata

There were no speakers at public forum.

5. Confirmation of Minutes of Previous Meeting of the Whangarei District Council / Whakatau Meneti

5.1 Minutes Whangarei District Council Meeting held 27 June 2024

Moved By Cr Phil Halse

Seconded By Cr Marie Olsen

That the minutes of the Whangarei District Council meeting held on Thursday 27 June 2024, including the confidential section, having been circulated be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting.

Carried

5.2 Minutes Whangarei District Council held 3 July 2024

Moved By Cr Simon Reid

Seconded By Cr Phoenix Ruka

That the minutes of the Whangarei District Council meeting held on Wednesday 3 July 2024, including the confidential section, having been circulated be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting.

Carried

5.3 Minutes Whangarei District Council Meeting held 16 July 2024

Moved By Cr Simon Reid

Seconded By Cr Patrick Holmes

That the minutes of the Whangarei District Council meeting held on Tuesday 16 July 2024, having been circulated be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting.

Carried

6. Decision Reports / Whakatau Rīpoata

6.1 Exemptions for Council Controlled Organisations to 25 August 2027

Moved By His Worship the Mayor

Seconded By Cr Paul Yovich

That the Council:

1. Resolves to exempt Springs Flat Contractors Limited as an organisation exempted under Section 7 of the Local Government

Act 2002, for a three year period starting on 25 August 2024 and ending on 25 August 2027.

2. Resolves to exempt Whangarei Waste Limited as an organisation exempted under Section 7 of the Local Government Act 2002, for a three year period starting on 25 August 2024 and ending on 25 August 2027.

Carried

6.2 Temporary Road Closure Request – Northland Car Club September and October 2024

Moved By Cr Simon Reid

Seconded By Cr Marie Olsen

That Whangarei District Council,

1. Approves the temporary closure of the following roads to ordinary traffic for the Northland Car Club Motorsport event series on the following dates in accordance with section 342 (1)(b) and Schedule 10 Clause 11 of the Local Government Act 1974.

Sunday 22 September 2024

Doctors Hill Road, from intersection of Mountfield Road to 400m from SH1.

Period of Closure: 8am to 5:30pm

Sunday 20th October 2024

Sime Road, 200m from intersection with Marsden Point Road.

Kepa Road, complete closure.

Period of Closure: 8am to 5:30pm

2. Approves the temporary closure of the side roads off the roads to be closed for up to 100 metres from the intersection for safety purposes.
3. Delegates to the Chair of the Infrastructure Committee and General Manager Infrastructure the power to give public notice of these proposed temporary closures, to consider any objections and to either approve, cancel or amend any or all of the temporary road closures if applicable.

Carried

6.3 Temporary Road Closure Request - International Rally of Whangarei 2024

Moved By Cr Simon Reid

Seconded By Cr Marie Olsen

That the Whangarei District Council:

1. Approves the temporary closure of the following roads to ordinary traffic for the International Rally of Whangarei 2024 on the following dates in accordance with the Transport (Vehicular Traffic Road Closure) Regulations 1965.

Wednesday 6th November 2024 to Sunday 10th November 2024 (Service Park)

Pohē Island Road, from start to end including the carpark.

Period of Closure: 8am Wednesday 6th November to 8pm Sunday 10th November 2024.

Wednesday 6th November 2024 (Testing)

Hosking Road, from Paparoa Oakleigh Road to Walker Road.

Period of Closure: 8am to 5pm.

Friday 8th November 2024 (Ceremonial Start)

James Street, from Robert Street to Cameron Street - including Cameron Street Mall.

John Street, from Robert Street to Cameron Street.

Cameron Street, from James Street to Walton Street.

Period of Closure: 3pm to 7pm.

Saturday 9th November 2024 (Hikurangi Refuel and community event).

George Street, from Alfred Street to Hill Street (Alfred and Hill streets remain open).

King Street, from George Street to Church Street.

Period of Closure: 7:30am to 3pm.

Saturday 9th November 2024

(Special Stage 1 & 5 HELENA)

Pigs Head Road, from the intersection of Whananaki Road to the bridge at Kaiikanui Road intersection.

Kaiikanui Road, from Pigs Head Road to the intersection of Webb Road & Mimiwhangata Road – including intersection/s with Black

Fern Grove (No Exit), Birdie Track Road (No Exit), Hay Road (No Exit).

Webb Road, from the intersection of Kaiikanui Road & Mimiwhangata Road to gate number 206 Webb Road – including intersection/s with Ngahua Bay Road (No Exit).

Period of Closure: 5:10am to 9:25am and 10:25am to 2:40pm.

(Special Stage 3 & 7 CROWS NEST)

Crows Nest Road, from SH1 to Paiaka Road.

Paiaka Road, from Crows Nest Road to Browns Road – including intersection/s with Wallace Road (No Exit), Rusk Road.

Browns Road, from Paiaka Road to Oetzmans Road.

Oetzmans Road, from Browns Road to Maromaku-Towai Road – including intersection/s with Bolero Road (No Exit).

Maromaku-Towai Road, from Oetzmans Road to Marlow Road.

Period of Closure: 7:40am to 11:40am and 12:55pm to 4:40pm.

(Special Stages 4 & 8 MARLOW)

Marlow Road, from Whangārei District Council Marlow Road Boundary to Riponui Road.

Riponui Road, from Marlow Road to Otakirangi Road.

Otakirangi Road, from Riponui Road to Swamp Road – including intersection/s with Rowlands Road (No Exit).

Period of Closure: 7:55am to 12:10pm and 1:10pm to 4:55pm.

(Special Stage 9 & 10 Pohe Island - Te Matau a Pohe Bridge)

Dave Culham Drive, from Port Road to Riverside Drive - includes Te Matau a Pohe Bridge.

Period of Closure: 2pm to 10pm.

Sunday 10th November 2024

(Special Stage 11 & 15 OTUHI)

Otuhi Road, from SH14 to Codlin Road.

Codlin Road, from Otuhi Road to Tangihua Road.

Tangihua Road, from Codlin Road to Bint Road.

Bint Road, from Tangihua Road to Porter Road.

Porter Road, from Bint Road to Snooks Road.

Period of Closure: 5:30am to 3pm.

(Special Stage 12 & 16 WAIOTIRA)

Ararua Road, from Mititai Road to Hartnell Road - including intersection/s with Wood Street (No Exit).

Hartnell Road, from Ararua Road to Stead Road.

Stead Road, Hartnell Road to Taipuha Road.

Taipuha Road, from Stead Road to Neville Road.

Neville Road, from Taipuha Road to Hosking Road – including intersection/s with Harrison Road.

Hosking Road, closed at intersection of Neville Road and Walker Road.

Walker Road, from Hosking Road to Waikiekie North Road.

Waikiekie North Road, from Walker Road to Paparoa Road.

Period of Closure: 6am to 3pm.

(Special Stage 13 & 17 DURHAM)

Waipu Gorge Road, from Whangārei District Council Waipu Gorge Road Boundary to SH1.

Durham Road, from Waipu Gorge Road to Finlayson Brook Road.

Finlayson Brook Road, from Durham Road to SH1 – including intersection/s with Brooks Road.

Period of Closure: 7:30am to 4pm.

(Special Stages 14 & 18 WAIPU CAVES)

Waipu Caves Road, from 878 Waipu Caves Road to intersection of Mangapai Caves Road and Springfield Road – including intersection/s with Short Lane (No Exit), Palmer Road (No Exit), Waipu Caves Estate Drive (No Exit), Boyd Road (No Exit).

Mangapai Caves Road, from the intersection of Waipu Caves Road and Springfield Road to the intersection of Graham Road and Mangapai Caves Road – including intersection/s with Rountree Road (No Exit), McDonnell Road (No Exit), Ngatoka Road (No Exit), Parry Road (No Exit).

Period of Closure: 8am to 5pm.

2. Approves the temporary closure of the side roads off the roads to be closed for up to 100 meters from the intersection for safety purposes.
3. Delegates to the Chair of the Infrastructure Committee and General Manager Infrastructure the power to give public notice of these proposed temporary closures, to consider any objections and to either approve, cancel or amend any or all of the temporary road closures if applicable.

Carried

Cr Connop requested his vote against be recorded.

6.4 Adoption of the draft Whangārei Future Development Strategy for public consultation

Moved By Cr Scott McKenzie

Seconded By Cr Ken Couper

That the Council:

1. Approves the draft Whangārei Future Development Strategy **(Attachment 1)** for public consultation via the Special Consultative Procedure pursuant to section 83 of the Local Government Act 2002.
2. Approves the draft Whangārei Future Development Strategy Technical Report **(Attachment 2)** for public consultation.
3. Delegates the Chief Executive to make any necessary formatting, typographical and administrative changes to the draft Whangārei Future Development Strategy and the draft Whangārei Future Development Strategy Technical Report prior to public consultation.
4. Notes that Northland Regional Council have approved the draft Whangārei Future Development Strategy and the draft Whangārei Future Development Strategy Technical Report for public consultation on 23 July 2024.

Carried

6.5 Regional Economic Development CCO – Northland Inc. Shareholding

Moved By Cr Ken Couper

Seconded By Cr Marie Olsen

That Council:

1. Authorises the Chief Executive to sign the Share Sale and Purchase Agreement relating to the shares on issue in Northland Inc (Attachment 1).
2. Agrees to purchase 10 shares in Northland Inc from Northland Regional Council at a value of \$2 per share and authorises the Chief Executive to sign the Share Transfer Form (Attachment 2) to execute the purchase.
3. Agrees to purchase 10 shares in Northland Inc from Kaipara District Council at a value of \$2 per share and authorises the Chief Executive to sign the Share Transfer Form (Attachment 3) to execute the purchase.
4. Agrees to purchase 10 shares in Northland Inc from Far North District Council at a value of \$2 per share and authorises the Chief Executive to sign the Share Transfer Form (Attachment 4) to execute the purchase.

5. Authorises the Mayor to sign the Northland Inc Shareholder's Agreement (Attachment 5) which includes the Constitution of Northland Inc.
6. Adopts the Terms of Reference for the Joint Regional Economic Development Committee (Attachment 6).
7. Adopts the Policy on the Appointment of Directors to Northland Inc (Attachment 7).
8. Appoints His Worship the Mayor Vince Cocurullo and Deputy Mayor Phil Halse as Council's representatives on the Joint Regional Economic Development Committee and appoints Councillor Carol Peters as the alternative.
9. Appoints His Worship the Mayor Vince Cocurullo as the shareholder representative for Northland Inc delegating all necessary authority to represent Council's interest including but not limited to exercising Council's vote as a shareholder of Northland Inc shareholder meetings and in regard to any shareholder resolutions.
10. Council notes the 2024-34 Long Term Plan only includes funding for years 1 and 2, after which time Council will review future involvement and ongoing funding requirements.

On the motion being put Cr Golightly called for a division:

	For	Against	Abstain
His Worship the Mayor	X		
Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Jayne Golightly		X	
Cr Phil Halse	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Marie Olsen		X	
Cr Carol Peters	X		
Cr Simon Reid		X	
Cr Phoenix Ruka	X		
Cr Paul Yovich		X	
Results	8	4	

The motion was Carried (8 to 4)

Extra ordinary business

Subsequent to the agenda being circulated Item 6.6 Transition Advisory Board Terms of Reference was distributed separately but not within the timeframe specified in LGOIMA.

The report was not included in the agenda for the reason that the Terms of Reference were not finalised at the time of the agenda closure.

Council are asked to consider this matter at today's meeting to enable the establishment of Transition Advisory Board to commence following decisions made through the Long Term Plan on 16 July 2024.

Moved By Cr Phil Halse

Seconded By Cr Simon Reid

That council consider Item 6.6 Transition Advisory Board Terms of Reference at today's meeting.

Carried

6.6 Transition Advisory Board

Moved By Cr Phil Halse

Seconded By Cr Scott McKenzie

That the Council:

1. Approves the Terms of Reference for the establishment of a Council Controlled Organisation or Council Controlled Trading Organisation Transition Advisory Board, including the changes tabled at today's meeting:

3. Membership

'The Transition Advisory Board will have up to ~~5~~ **8** members ...'

- Up to 4 External Representatives *plus 3 WDC Elected Members: Councillor Ken Couper, Councillor Deborah Harding and Councillor Paul Yovich.*

5. Membership

- Provide advice to Council on development opportunities within the Property Portfolio, including on the viability of specific opportunities, *to provide advice and direction on external opportunities that align with Council's goals as the Board see fit.*

9. Term

- This committee term is for the 2024/2025 financial year, *with a view to establishment of a CCO or CCTO by March 2025.*

Appendix A

- Chair of the Planning and Development *Committee and Finance Committee and Te Karearea Committee.*
2. Notes the membership of the CCO or CCTO Transition Advisory Board will comprise up to eight members comprising:
 - The Chief Executive or delegated staff representative
 - Up to four external representatives
 - Three Whangarei District Council Members.
 3. Appoints Councillors Ken Couper, Deborah Harding and Paul Yovich as the Whangarei District Council Members to the CCO or CCTO Transition Advisory Board.

Carried

7. Information Reports / Ngā Pūrongo Kōrero

7.1 Administrative Matter - Correction to Council Minutes

Moved By Cr Phil Halse

Seconded By Cr Scott McKenzie

That the Council:

1. Notes the correction to the Minutes of the Extra ordinary Whangarei District Council meeting 29 May 2024.
2. Notes the minuted decision/vote on Aquatic Centre will be amended as follows:

'On the ~~motion~~ amendment being put His Worship called for a division.'

*'The ~~motion~~ amendment was **Carried (10 to 3)**, and **subsequently Carried**, as the **substantive motion**.'*

Carried

8. Public Excluded Business / Rāhui Tangata

Moved By Cr Simon Reid

Seconded By Cr Marie Olsen

That the public be excluded from the following parts of proceedings of this meeting. The general subject of each matter to be considered while the public is excluded, the reason for passing this resolution in relation to each matter, and the specific grounds under Section 48(1) of the Local Government Official Information and Meetings Act 1987 for the passing of this resolution are as follows:

General subject of each matter to	Reason for passing	Ground(s) under
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be considered		this resolution in relation to each matter	Section 48(1) for passing this resolution
1.1	Confidential Minutes Whangarei District Council 27 June 2024	Good reason to withhold information exists under Section 7 Local Government Official Information and Meetings Act 1987	Section 48(1)(a)
1.2	Confidential Minutes Whangarei District Council 3 July 2024		
1.3	Springs Flat Roundabout Procurement Plan		
1.4	Extension Wastewater and Stormwater Maintenance Contract		
1.5	Airport Noise Committee Community Representative		
1.6	NECT Reappointments & Resignations		
1.7	Old Municipal Building Future Use		
1.8	Saorsa Retirement Village Trust – Capital Grant Request		

This resolution is made in reliance on Section 48(1)(a) of the Local Government Official Information and Meetings Act 1987 and the particular interest or interests protected by Section 6 or Section 7 of that Act which would be prejudiced by the holding of the whole or the relevant part of the proceedings of the meeting in public, are as follows:

Item	Grounds	Section
1.1	For the reasons as stated in the open minutes	
1.2	For the reasons as stated in the open minutes	
1.3	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations)	Section 7(2)(i)
1.4	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations)	Section 7(2)(i)
1.5	To protect the privacy of natural persons including that of a deceased person	Section 7(2)(a)
1.6	To protect the privacy of natural persons including that of a deceased person	Section 7(2)(a)

1.7	To enable Council to carry on without prejudice or disadvantage commercial activities To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations)	Section 7(2)(h)
1.8	To protect information where the making available of the information would be likely unreasonably to prejudice the commercial position of the person who supplied it or the subject of the information.	Section 7(2)(b)(ii)

Carried

A break was taken at this juncture from 10.02am to 10.15am.

9. Closure of Meeting / Te katinga o te Hui

His Worship the Mayor closed the meeting at 12.04pm with a karakia/prayer.

Confirmed this 29th day of August 2024

His Worship the Mayor Vince Cocurullo (Chairperson)